

Shitala Sharan Nigam vs State Of U.P.And Another on 11 January, 2010

Author: Vineet Saran

Bench: Vineet Saran

Court No. - 55

Case :- APPLICATION U/S 482 No. - 33462 of 2009

Petitioner :- Shitala Sharan Nigam

Respondent :- State Of U.P.And Another

Petitioner Counsel :- M.L. Maurya

Respondent Counsel :- Govt. Advocate

Hon'ble Vineet Saran,J.

Connect with Criminal Misc. Applications u/s 482 No. 21706 of 2008 and 28151 of 2008 Learned A.G.A. has accepted notice for the respondent no. 1.

Issue notice to the respondent no. 2 fixing a date immediately after eight weeks.

All the respondents may file counter affidavit by the next date.

The submission of the learned counsel for the applicant is that the petitioner and the respondent no. 2 got married on 1.7.2003. Since there was dispute between them, certain cases have been filed by the respondent no. 2 against the petitioner and finally a petition for divorce under Section 13-B of Hindu Marriage Act was filed in which a compromise was entered into on 11.11.2009, a copy of which has been filed as Annexure-8 to the application. It is submitted that in terms of the compromise, the petitioner has already paid a sum of Rs. 1,60,000/- to the respondent no. 2. It is further submitted that it is understood that the cases filed by the respondent no. 2 against the petitioner shall stand withdrawn. However, despite the compromise the petitioner is being harassed by the police in pursuance of the cases lodged by the respondent no. 2 against the petitioner prior to the filing of the application.

Considering the facts and circumstances of this case and keeping in view the aforesaid submission of the learned counsel for the applicant, it is provided that till the next date of listing, further proceedings of Case No. 1829 of 2009 (Old No. 4324/08) arising out of Case Crime No. 303 of 2008 under Sections 498-A/323/504/506 IPC and 3/4 D.P. Act, Police Station: Kidwai Nagar, District: Kanpur Nagar pending in the Court of learned Chier Metropolitn Magistrate, Kanpur Nagar as well as Case No. 374 of 2009 under Sections 12/17/18/19/20/22 of Domestic Violence Act, Police Station: Nazirabad, District: Kanpur Nagar pending in the Court of learned Metropolitan Magistrate VIIIth, Kanpur Nagar and Case Crime No. 76 of 2009 under Sections 504/506, shall remain stayed.

Order Date :- 11.1.2010 AbHishEK